

CRIMINAL HISTORY RECORD INFORMATION, OUTSTANDING WARRANTS, PENDING CASES			
To Any Presiding Judge In The Above-Named County And Court: (Confidential) I have conducted a search of the criminal records of the North Carolina State Bureau of Investigation and the Federal Bureau of Investigation, and a search for outstanding warrants or pending criminal cases, based on the information provided, which has not been verified by fingerprint comparisons, and certify that ☐ there is no criminal record and no record of outstanding warrants or pending criminal cases for the petitioner other than the offense(s) identified on the reverse of this form. ☐ the Criminal History Record Information which is attached is a true and accurate statement of all information contained in the criminal records of the State and Federal Bureaus of Investigation for the petitioner identified on the reverse side of this form.			
Date	SID No.	Name Of SBI Official (type or print)	Signature Of SBI Official
REPORT BY ADMINISTRATIVE OFFICE OF THE COURTS			
To Any Presiding Judge In The Above-Named County And Court: (Confidential) I have searched the confidential file of the names of all persons granted an expunction in North Carolina and certify that ☐ there is no record under the name of the petitioner of any expunction under any statute of North Carolina. ☐ there is a record under the name of the petitioner identified on the reverse side and it is attached to this form.			
Date	Name Of Records Officer (type or print) Courtney Bailey		Signature Of Records Officer
FINDINGS OF FACT			
After a hearing on the petition/motion, the Court makes the following findings of fact: ☐ 1. Petitioner was convicted of the nonviolent felony(ies) listed and in the file number(s) shown on Side One. ☐ 2. Each offense(s) of conviction listed on Side One is eligible for expunction under G.S. 15A-145.5. ☐ 3. Petitioner was convicted of, and completed any sentence received for, the offense(s) listed on Side One: (i) for the expunction of one nonviolent felony, at least fifteen years prior to the filing of this petition for a conviction under G.S. 14-54(a), or ten years prior for any other felony; or (ii) at least twenty years prior for two or three nonviolent felonies, as listed on Side One or listed in this and another petition(s) filed in separate counties pursuant to G.S. 15A-145.5(c4). ☐ 4. Petitioner: (check one) ☐ a. has not previously been granted an expunction for one or more nonviolent felonies under G.S. 15A-145.5. ☐ b. previously has been granted an expunction for one or more nonviolent felonies under G.S. 15A-145.5, but pursuant to subsection (c4) or (c5) of that section, the prior expunction(s) does not prohibit the relief sought herein. ☐ The Court finds good cause to grant this petition, notwithstanding its filing more than 120 days apart from another petition filed pursuant to subsection (c4). ☐ 5. Petitioner is of good moral character. ☐ 6. Petitioner has no outstanding warrants or pending criminal cases, is not under indictment, and no finding of probable cause exists against the petitioner for a felony in any federal court or state court in the United States. ☐ 7. Petitioner is not free on bond or personal recognizance pending trial, appeal, or sentencing in any federal or state court in the United States for a crime that would prohibit this petition for expunction from being granted. ☐ 8. (for petition to expunge one nonviolent felony) Petitioner has no misdemeanor convictions, other than a traffic violation not listed in this petition, in the five years preceding this petition, and no other felony convictions during the applicable waiting period set forth in G.S. 15A-145.5(c). ☐ 9. (for petition to expunge two or three nonviolent felonies, listed in this petition or in this and another petition(s) filed in separate counties pursuant to G.S. 15A-145.5(c4)) ☐ a. Petitioner has no misdemeanor convictions, other than a traffic violation not listed in this petition, in the five years preceding this petition, and no other felony convictions during the twenty-year waiting period set forth in G.S. 15A-145.5(c). ☐ b. All felonies listed in this petition, any petition filed in another county pursuant to G.S. 15A-145.5(c4), and any felony previously expunged pursuant to a petition filed before December 1, 2021, as provided in G.S 15A-145.5(c5), were committed within the same 24-month period. ☐ 10. Petitioner has no conviction for a misdemeanor excepted from "nonviolent misdemeanor" in G.S. 15A-145.5(a) or for any other felony offense. ☐ 11. Petitioner has no outstanding restitution orders or civil judgments representing amounts ordered for restitution entered against him/her. ☐ 12. The Court has reviewed all other information the Court deems relevant to this petition, including, but not limited to, affidavits or other testimony provided by law enforcement officers, district attorneys, and victims of crimes committed by the petitioner. 13. The petitioner ☐ is ☐ is not eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because: _____.			
ORDER			
Therefore, the Court hereby ORDERS: ☐ 1. The petition is granted. It is ordered that: a. any and all entries relating to the petitioner's charge or conviction shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge any and all records of the petitioner's criminal charge and any conviction resulting from the charge. The Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151. b. any other State or local government agency shall expunge from its records entries made as a result of the conviction(s) ordered expunged herein upon receipt of a copy of this Order from the petitioner. Any such agency shall also vacate any administrative actions taken against petitioner as a result of the charge or conviction expunged, except that this subsection b. shall not apply to the Department of Justice DNA records and samples stored in the State DNA Database and the State DNA Databank. ☐ 2. For the reason(s) identified in Finding No. 13, the petition is denied.			
NOTE TO CLERK: If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report and any NCAOC report of prior expunctions. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.			
Date	Name Of Presiding Judge (type or print)		Signature Of Presiding Judge
CERTIFICATION BY CLERK			
I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.			
Date	Name (type or print)	Signature Of Clerk	☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court SEAL
NOTE TO CLERK: If granted, always send a certified copy of this Order under seal to the petitioner, to all the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to: State Bureau of Investigation NC Department of Adult Correction NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch NC Administrative Office of the Courts Attn: Expunction Unit Attn: Combined Records Section Attn: Hearings/Adjudication Unit Attn: Records Officer 3320 Garner Road 4226 Mail Service Center 3118 Mail Service Center PO Box 2448 Raleigh, NC 27610 Raleigh, NC 27699-4226 Raleigh, NC 27699-3118 Raleigh, NC 27602			
NOTE TO PETITIONER: If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file. AOC-CR-297, Side Two, Rev. 6/25 (replaced AOC-CR-281 for nonviolent felony petitions), © 2025 Administrative Office of the Courts			